Technical commitments: what the agreement should guarantee

Emily's email: Emily (10/30): the GOLD draft "spells out too many technical details and repeats much of the same language across the agreement, Appendix A, and system specifications attachment," and "goes beyond the NDPA in several areas, including annual independent audits and penetration testing, detailed record-access logging, specific patching and backup deletion deadlines, and AI provider restrictions as well as shorter time/limit on certain responses and requirements." Her recommendation: "the NDPA as the baseline, with a concise CHSS supplement where needed, stating each obligation once, and keeping implementation details in separate technical documentation." **Lewis County:** The Education Cooperative's eighteen-state NDPA (version 1.0 family), received 10/29: standard clauses Articles II, IV, and V, and the state terms for Colorado, Idaho, Iowa, New Hampshire, New York, Ohio, and Washington, read in full. **Columbus City DSA:** Columbus City Schools, Student Data Sharing Agreement, revised 3/17/2025, forwarded by James 10/30: services items 5 through 10 and the termination section. **District lens:** 1EdTech's Data Privacy and Security Agreement template (version 1.0, 2024), written by a task force of districts and suppliers including Fresno Unified, Scottsdale Unified, Albuquerque, and Loudoun County, and 1EdTech's Security Practices Rubric (version 1.0, 42 items). Both are public. Districts that use the 1EdTech template will hand CHSS that document in place of the NDPA. **Luke's decision:** Emily's structure is adopted. This page is the clause-by-clause application of it: for each technical commitment in the current draft, what the NDPA, Columbus, and the 1EdTech template require, and a recommendation on whether it stays in the contract, moves to a district exhibit, moves to technical documentation, or comes out.

> **Purpose.** This page answers one question for each technical commitment in the agreement: how much should CHSS guarantee in the contract? It applies the structure Emily proposed on October 30: the National Data Privacy Agreement (NDPA) as the baseline, a concise CHSS supplement that states each obligation once, and implementation detail in separate technical documentation. Decisions are marked for the Tuesday working session.

Summary

- **The structure changes; the commitments mostly survive in a different place.** Of the commitments Emily flagged, two are required by Columbus City Schools in writing (annual third-party audit of security operations, and documented, logged access with log data on request), one is required for the agreement's first district under the NDPA's New Hampshire and New York terms (audit logs and a cybersecurity framework), and the rest are stronger than any first-cohort district requires. Those move to technical documentation or come out.
- **Three layers, one statement per obligation.** Layer one is the NDPA, where executed. Layer two is the CHSS supplement, which carries only what the NDPA lacks: coach access, screeners, the AI commitments, who notifies families after a breach and who pays, de-identified retention, insurance, no automatic renewal, and the state terms. Layer three is technical documentation, provided on request under the evidence clause, which holds the control inventory, the deletion runbook, and the system specifications now in Attachment 1.

- **A fourth layer for district variations.** A one-page district exhibit, in the three-column form the 1EdTech template uses (section, original text, revised text), records any requirement a district adds. Columbus is the first entry. The body of the agreement stays identical across districts.
- **The rule for how much to guarantee.** A technical commitment belongs in the contract only if one of three tests is met: the NDPA already requires it; a named district requires it in writing; or CHSS can evidence it today, or by a date it is willing to put in the agreement. Everything else is documentation, not promise.
- **One decision for Jonah and Emily on the AI clause.** The current clause bars using district data, even de-identified, to improve any machine-learning model. Jonah asked whether that stops Navigator from getting smarter. It does. The recommended revision allows CHSS to improve the Services with de-identified data under the existing review process, while keeping the ban on any outside provider training on student data. The NDPA permits the first; Colorado's state terms require the second.

The rule for how much to guarantee

A commitment in a signed agreement is a promise a district may audit, and in several states a breach of it carries statutory penalties. The test for each technical commitment is therefore not "is this good practice" but "can CHSS show it, and does anyone require it."

Test	If it is met	Example
The NDPA already requires it	Do not restate it. The supplement must not contradict it.	Breach notice within seventy-two hours; sixty-day disposition; subprocessor flow-down; de-identified data rules; the LEA's annual audit right.
A named district requires it in writing	Carry it in that district's exhibit, in the district's own words, after Emily confirms CHSS can meet it.	Columbus: annual third-party audit of security operations; critical patches within one week "where reasonable and applicable."
CHSS can evidence it today, or by a date it will commit to	State it once, in the supplement, with the date if needed.	Encryption in transit and at rest; multi-factor authentication for CHSS staff; hosting on Microsoft Azure and Salesforce, each with a current SOC 2 Type 2 report.
None of the above	Technical documentation, dated, provided on request. Not a contractual term.	Penetration testing; backup rotation periods; patch windows; deprovisioning clocks; log retention periods.

Technical documentation is still read by districts. Anything in it must be accurate on the date it is given, and the evidence clause should say that documentation describes current practice and may change with notice.

Commitment by commitment

The first column is the commitment as drafted (clause numbers refer to the GOLD draft). "NDPA" means the eighteen-state agreement's standard clauses, with state terms noted where they add to them. "Columbus" is the Columbus City Schools agreement. "1EdTech" is the Data Privacy and Security Agreement template.

Commitment as drafted	NDPA	Columbus	1EdTech template	Recommendation
Annual independent assessment (SOC 2 Type II or equivalent). A.7, A.13, Attachment 1	Not required. Article V.2 gives the LEA an audit right once a year on ten business days' notice. New York: the state Chief Privacy Officer may require an independent audit at the provider's expense, or accept an industry-standard independent audit report from the prior twelve months. New Hampshire: twenty-three listed controls, or annual evidence of a certification such as SOC 2 Type 2 or ISO 27001.	**Required.** Item 7: "Third party audits of security operations are conducted annually."	Audit once per twelve months on thirty days' notice, or an annual audit summary or bridge letter in its place (4.7).	**Remove the annual-assessment promise from the supplement; keep the evidence-on-request clause.** Columbus's requirement goes in the Columbus exhibit. Emily decides what satisfies it: the SOC 2 Type 2 reports of Microsoft Azure and Salesforce cover the hosting operations today, and a CHSS assessment of its own configuration is a cost decision with a date.
Annual penetration test of Navigator and the data platform. A.7, A.13, Attachment 1	Not required. New Hampshire control 16: periodically assess security controls and correct deficiencies, or hold a certification.	Not required. James's recollection was audit, not penetration testing; the document requires the audit only.	Required: a third-party penetration test dated within twelve months, with high and above findings remediated (4.7(a)).	**Move to technical documentation.** State the testing practice and its date there. A district that hands CHSS the 1EdTech template takes it in that district's exhibit.
Record-level access logging: every access to student-level records logged with user, time, and record;	Not in the standard clauses. New Hampshire controls 5 and 6: audit logs sufficient to investigate	**Required.** Item 8: "The identity of all persons having access to student data is documented and	Not in the body; the supplier's own security standards are	**Keep one sentence in the supplement; drop the detail.** "Access to Student Data is logged, and CHSS will provide log data for end-user,

Commitment as drafted	NDPA	Columbus	1EdTech template	Recommendation
logs retained twelve months; log data on request; "every access ... is logged" repeated in 5.4. A.7, 5.4	unauthorized activity, and actions traceable to individual users, unless a certification is held instead.	access is logged." Item 9: the District may request "log data for end user, administrative and maintenance activity."	attached as Exhibit A.	administrative, and maintenance activity on request in connection with an incident." Delete the twelve-month retention, the per-record specification, and the repeated sentence in 5.4. Retention and format go in technical documentation. Columbus and New Hampshire are both satisfied.
Critical patches within seven days. A.7, Attachment 1	Not required. New Hampshire control 20: "identify, report, and correct system flaws in a timely manner," or a certification.	**Required, qualified.** Item 7: "Deploy critical security patches within one week of release where reasonable and applicable."	Not required.	**Remove from the supplement.** The Columbus exhibit carries Columbus's own words, including "where reasonable and applicable." Technical documentation states the actual patch policy.
Backups expire within ninety days and are never restored to production. A.10, Attachment 1	Not required. Article IV.6: disposition within sixty days of request; de-identified data exempt.	Not required. Destroy or return within ninety days of termination.	Deletion within ninety days after termination or thirty days on request; a deletion certificate (4.9, Exhibit C).	**Remove the ninety-day backup clause.** Keep the NDPA's sixty days, and add one clause: backup copies are overwritten in the ordinary rotation and are not restored to production. The rotation period goes in technical documentation after Emily confirms it.
AI commitments (a) through (i): no training on district data; inferences are Student Data; provider named with terms and country; human decisions; provider personnel; opt-out; thirty days'	Not in the standard clauses. Colorado: "The Provider shall not use Student Data to train Artificial Intelligence (AI) models of systems." New Hampshire: data may not be used to develop	Not addressed.	Not addressed in the agreement; 1EdTech's separate AI rubric asks whether prompts improve the model and	**Keep four, move five.** Keep in the supplement: no outside provider trains on Student Data; the provider is named as a subprocessor; recommendations go to educators, who decide; notice before a provider changes. Move to

Commitment as drafted	NDPA	Columbus	1EdTech template	Recommendation
notice of a provider change; questionnaire on request; description and demonstration on request. A.12, A.6	commercial products, but adaptive and customized learning is permitted. Article IV.5: de-identified data may be used for "research and development of the Provider's educational sites, services, or applications."		where training data comes from.	technical documentation and the privacy plan: provider personnel access, the questionnaire, the description and demonstration. The training sentence itself needs Jonah's and Emily's decision; see the next section.
Breach notice within seventy-two hours; family notice agreed within five business days; CHSS bears costs for its breach. A.8	**Required:** seventy-two hours after confirmation (Article V.4); New York the same. The NDPA leaves family notice to the LEA and does not allocate costs.	Required: the District "will be notified"; response steps listed; no fixed period.	Seventy-two hours (4.6).	**Keep seventy-two hours (it is the NDPA's number), keep who notifies families and who pays, drop the five-business-day clock.** The division of labor is the part the NDPA lacks and California's § 49073.1 requires.
Deprovisioning within one business day; quarterly access review. A.7	Not required.	Not required.	Not required.	**Technical documentation.**
Parent-request support within ten business days. A.11	Article II: the provider supports the LEA's response; no fixed period in the standard clauses.	The parties "shall establish reasonable procedures."	Not addressed.	**Keep, with "promptly" unless Emily is comfortable with ten business days.** California's § 49073.1 requires a described procedure, not a number.
Feed-failure notice within one business day; validation report per load. 6.9	Not addressed; a service level, not a privacy term.	Not addressed.	Not addressed.	**Move to the onboarding guide.** Jonah has agreed to the support commitment itself; the service levels belong with the specification.

Commitment as drafted	NDPA	Columbus	1EdTech template	Recommendation
Security questionnaire answered within thirty days. A.13	Article V.2: ten business days' notice for an audit.	Not addressed.	Thirty days' notice for an audit (4.7).	**Keep.** It is the district's main evidence request, and thirty days is the common figure.
Encryption (TLS 1.2 or higher in transit; AES-256 at rest); MFA for CHSS staff; SSO for district users; salted and hashed passwords. A.7, Attachment 1	Article V.3 requires a cybersecurity framework from Exhibit F; New Hampshire control 18 requires encryption at rest.	Item 6 requires salted hashes and SSL.	Framework alignment (NIST CSF, SOC 2, or ISO 27001) and no material decrease during the term (4.5(a)).	**Keep as one sentence in the supplement, because CHSS can evidence it today on Azure and Salesforce.** Name the framework once (NIST Cybersecurity Framework, which New York requires). Everything else in the A.7 bullets goes to technical documentation.
Background checks and annual training for everyone with access, coaches included. A.7	Article IV.3: confidentiality agreements for every employee with access. Six of the state terms require criminal background checks for employees with direct student contact.	Item 8: employees comply with FERPA.	Not addressed.	**Keep, after Demian confirms current practice.** It is a state requirement for coaches, not a technical control.
Incident response plan, maintained and tested. A.7	Implied by Article V.3 and the framework.	Item 9 lists the response steps.	Implied by 4.5.	**Keep as one clause.** The steps go in technical documentation.
Disaster recovery plan, tested annually. Not in the draft	Not required.	Not required.	Security rubric item DOC-05.	**Technical documentation.** Not a contractual term.
U.S.-only storage and processing. A.9	Article V.1: within the United States where required by law. New York: United States or Canada.	**Required.** Item 5: no storage outside the United States without written consent.	Continental United States (3.2).	**Keep as one sentence.** CHSS can evidence it by tenant region.

Commitment as drafted	NDPA	Columbus	1EdTech template	Recommendation
Insurance: cyber $2,000,000; general liability $1,000,000 per occurrence and $2,000,000 aggregate; errors and omissions $1,000,000. A.14	Not addressed.	**Required:** cyber liability of at least $1,000,000 covering crisis management, extortion, media and content, and security and privacy liability.	Exhibit E: cyber $1,000,000; general liability $1,000,000 per occurrence and $3,000,000 aggregate; carrier rated A or better by A.M. Best; the institution as additional insured.	**Keep in the supplement at the limits Demian confirms.** The draft's $2,000,000 cyber exceeds Columbus. Districts using the 1EdTech template start from a $3,000,000 general liability aggregate; Demian decides whether to match it.
Attachment 1, system specifications.	Not addressed.	Not addressed.	The supplier's security standards are attached as part of Exhibit A.	**Remove from the contract.** It becomes the first technical document, provided under the evidence clause. Its contents are already the twenty-five-row list on the Notes tab.

The AI training clause under the microscope

Jonah's comment on A.12(a) asks whether the clause prevents CHSS from using the data to make Navigator smarter. It does, and it was written to. The decision is whether that is the position CHSS wants.

The clause as drafted. "Neither CHSS nor any Subprocessor will use Student Data, De-identified Data, or any output derived from them to train, fine-tune, evaluate, or otherwise improve any machine-learning model, or to develop synthetic or inferred data for any purpose other than delivering the Services to the District."

Why each phrase is there.

- "Neither CHSS nor any Subprocessor": the model provider is bound through CHSS. A district cannot contract with the provider, so it holds CHSS responsible.
- "Student Data, De-identified Data, or any output derived from them": this closes the de-identify-then-train route. It is the first thing a privacy officer looks for, because most model

training on education data happens on data that has been de-identified first. California's NDPA version 1.5 (Exhibit G, clause 8) bars training and the development of synthetic or inferred data; Colorado's terms in the TEC agreement bar training on Student Data outright.

- "train, fine-tune, evaluate, or otherwise improve": evaluation sets are how models are tuned without "training" in name. The list is written so that the restriction cannot be met by relabeling the activity.
- "for any purpose other than delivering the Services": this exception attaches to synthetic and inferred data, not to training. Clause (b) then permits student-specific inferences, which are what Navigator produces, as long as they are treated as Student Data.

What the clause prevents. Using one district's data, in any form, to make a model better for other districts. That includes using de-identified outcomes to tune the intervention-recommendation model.

What it does not prevent. Evaluating the program with de-identified and aggregate data (5.5, A.10); learning from results and encoding what works as rules, content, or configuration; improving the product by any means other than training a model on district data.

The decision. Three positions are available.

Position	District reaction	Legal footing	Cost to CHSS
1. Keep the clause as drafted. No training on district data in any form.	The strongest position a district can be offered. Matches Colorado's terms and California's Exhibit G. Arizona's AI questionnaire is answered "no" on every training question.	NDPA Article IV.5 allows more than this; the clause gives it up.	Navigator's models cannot learn from district data. Improvement comes from evaluation and design.
2. Split the rule (recommended). Student Data and outputs: never used to train any model, by anyone. De-identified Data: CHSS may use it to evaluate and improve the Services, including models used only within the Services, after the documented review in A.10, and never shared with a provider for training.	Accepted by most districts when the de-identification review is documented and a minimum dataset size is stated. A privacy officer will ask how the de-identified set is built; A.10 already answers.	NDPA Article IV.5 expressly permits de-identified data for "research and development of the Provider's educational sites, services, or applications" and for "adaptive learning." New Hampshire's terms permit adaptive and customized learning. Colorado's bar applies to Student Data, which under the NDPA's	A de-identification pipeline that meets the A.10 review before any training use. Add "evaluation and improvement of the Services using de-identified data" to the NDPA's Exhibit A, because most of the eighteen state terms, Ohio and Colorado among them, limit use to the services listed there.

Position	District reaction	Legal footing	Cost to CHSS
		definition excludes de-identified data.	
3. Allow training on Student Data for CHSS-operated models.	Refused by Colorado under the TEC terms and by California under Exhibit G; the first question on Arizona's questionnaire. Expect this to stop signature in several states.	None in the NDPA family.	Lowest engineering cost; highest signature cost.

Recommended wording for position 2. "(a) Neither CHSS nor any Subprocessor will use Student Data, or any output derived from Student Data, to train, fine-tune, or otherwise improve any machine-learning model, or to develop synthetic or inferred data for any purpose other than delivering the Services. CHSS may use De-identified Data, created and reviewed under A.10, to evaluate and improve the Services, including models used only within the Services, provided that no model provider or other Subprocessor retains De-identified Data or uses it for its own purposes. No dataset of fewer than twenty students is treated as de-identified for this purpose."

The twenty-student floor is the 1EdTech template's definition of de-identified data. Adopting it answers the question before a district raises it, and pairs with the existing rule that published cells under ten are suppressed.

Two consequences to flag for Tara. Iowa's terms state that the NDPA "does not provide approval for use of Student Data for research or audit/evaluation purposes" and require the district's institutional review board approval before research or evaluation data is collected. And in the states that limit use to Exhibit A, the evaluation design has to be described there, so the outcomes Jonah asked Tara to list also belong in Exhibit A.

What goes where

Layer	Carries	Form
NDPA (where executed)	Authorized use; employee obligations; no disclosure; de-identified data; sixty-day disposition; advertising limits; data storage; the audit right; the cybersecurity framework; seventy-two-hour breach notice; law-enforcement requests; subprocessor flow-down; the state terms.	TEC's eighteen-state form with Exhibit E, then each remaining state's version.
CHSS supplement	School-official basis and coach access (5.1, 5.4). Permitted use, including no advocacy or political use (5.5). Screeners (6.7, A.15). The AI commitments, trimmed to four. Who notifies families after a breach and who pays (A.8). De-identified retention with the documented review	Appendix A, roughly half its current length, with each

Layer	Carries	Form
	and the twenty-student floor (A.10). One security sentence: framework, encryption, MFA, logging with log data on request, U.S. hosting on named providers. Evidence on request (A.13). Insurance (A.14). Immediate suspension and no automatic renewal (A.16). State terms (A.17). Order of precedence (5.2, A.18).	obligation stated once.
District exhibit	Any requirement a district adds, in the district's words: section, original text, revised text.	One page per district. Columbus is the first entry.
Technical documentation	The control inventory (the twenty-five rows on the Notes tab, in the 1EdTech Security Practices Rubric's forty-two-item format so that any district technology director recognizes it); the system specifications now in Attachment 1; the deletion runbook; patch, backup, logging, and deprovisioning practice with dates; penetration testing practice; disaster recovery; the hosting providers' SOC 2 Type 2 reports.	Dated documents provided on request under A.13. Not contractual terms.

Where no NDPA is executed. CHSS signs the state's NDPA version on request (A.19), so the baseline exists in every state with an alliance. For a district in a state without one, the NDPA's standard clauses are attached as the baseline exhibit, so that the supplement never has to stand alone and nothing the baseline provides is lost.

The Columbus exhibit

A first draft of the district exhibit, in the three-column form. Each entry takes effect only if Emily confirms CHSS can meet it.

Section	Columbus requirement (Student Data Sharing Agreement, rev. 3/17/2025)	Supplement text	Variation for Columbus
A.13	"Third party audits of security operations are conducted annually."	Evidence on request, once a year.	CHSS will provide annually the third-party audit reports covering the security operations of its hosting providers (SOC 2 Type 2 for Microsoft Azure and Salesforce) and [its own independent assessment once completed] [a documented annual review of its configuration].
A.7	"Deploy critical security patches within one week of release where reasonable and applicable."	Not stated; in technical documentation.	Adopt Columbus's sentence verbatim.
A.7	"The identity of all persons having access to student data is	One sentence, as recommended	None needed.

Section	Columbus requirement (Student Data Sharing Agreement, rev. 3/17/2025)	Supplement text	Variation for Columbus
	documented and access is logged"; the District may request log data for end-user, administrative, and maintenance activity.	above.	
A.7	Stored passwords protected by salted hashes; authentication over SSL/HTTPS.	Not stated; in technical documentation.	Adopt Columbus's sentence verbatim.
A.14	Cyber liability of at least $1,000,000 covering crisis management and extortion, media and content, and security and privacy liability.	$2,000,000, pending Demian.	None needed.
A.10	Destroy or return all educational records within ninety days.	Sixty days.	None needed; the supplement is stricter.
A.17	Comply with Ohio Revised Code 3319.321, 3319.325 through 3319.327, and Chapter 1347 "as if it were the District," including breach notification under R.C. 1347.12.	Already in the Ohio bullet.	None needed.
A.5	Warrant COPPA conformity for data collected directly from students.	Not addressed.	Add: the Services collect no information online from children under thirteen; the screeners are administered by the District under 6.7.

What this means for the TEC form

- **Exhibit F:** the NIST Cybersecurity Framework, which New York's terms require in any case. Emily confirms that CHSS can truthfully claim alignment, and any exclusions are listed in the attachment the form provides for.
- **New Hampshire:** either the twenty-three listed controls or an annual certification. The technical documentation, written in the rubric format, doubles as the New Hampshire attachment.
- **New York:** alignment with the NIST framework, the published Data Security and Privacy Plan, and the audit provision described above.
- **Exhibit A:** add evaluation and improvement using de-identified data, and the outcome measures Tara names, so that the use is authorized in the states that limit use to Exhibit A.

For the Tuesday working session

1. Confirm the three-layer structure and the rule for what belongs in the contract.
2. Decide each row of the commitment table: supplement, district exhibit, technical documentation, or out.
3. Decide the AI training clause: position 1 or 2.
4. Agree the format of the technical documentation (the 1EdTech rubric's forty-two items), who writes it, and when the first dated version exists. Confirm what CHSS can evidence today: tenant regions, encryption settings, MFA, the hosting providers' SOC 2 Type 2 reports.
5. Confirm the TEC form answers: Exhibit F, the New Hampshire path, Schedule 1 accessibility documentation.
6. Set the date for the restructured draft to counsel.

Sources

- The Education Cooperative, eighteen-state NDPA for the Center for High School Success, originating district Lewis County C-1 (Missouri), received October 29, 2026.
- Columbus City Schools, Student Data Sharing Agreement, fillable form revised March 17, 2025.
- 1EdTech Consortium, Data Privacy and Security Agreement template, version 1.0 (2024), as published by Prince George's County Public Schools: https://www.pgcps.org/contentassets/0d463a5c451f40fcba26c2796d7a59c8/appendix-m-data-privacy-and-security-agreement.pdf; template page https://www.1edtech.org/resource/dpsa.
- 1EdTech Consortium, TrustEd Apps Security Practices Rubric, version 1.0: https://www.imsglobal.org/spec/security-rubric/v1.
- California Education Code § 49073.1(b); Ohio Revised Code 3319.321, 3319.325 through 3319.327, and 1347.12; New York Education Law § 2-d and 8 NYCRR Part 121.
- The Arizona NDPA Exhibit G artificial-intelligence questionnaire and the California NDPA version 1.5 Exhibit G, clause 8.